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| APPLICATION NO. | FILING DATE | FIRST NAMED INVENTOR | ATTORNEY DOCKET NO. | CONFIRMATION NO. |
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| 14/058,342 | 10/21/2013 | Michael Golin | 2001U-001685/US/DVB | 8054 |

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| EXAMINER |
|---|
| BRADLEY, AUDREY KLASTERKA |

| ART UNIT | PAPER NUMBER |
|---|---|
| 3748 | |

| NOTIFICATION DATE | DELIVERY MODE |
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| 03/27/2015 | ELECTRONIC |

**Please find below and/or attached an Office communication concerning this application or proceeding.**

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

troydocketing@hdp.com

| Office Action Summary | Application No. 14/058,342 | Applicant(s) GOLIN ET AL. | |
|---|---|---|---|
| | Examiner AUDREY K. BRADLEY | Art Unit 3748 | AIA (First Inventor to File) Status No |

*-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --*

**Period for Reply**

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE *3* MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

**Status**

1)☐ Responsive to communication(s) filed on _____.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL**. 2b)☒ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

**Disposition of Claims***

5)☒ Claim(s) *1-21* is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6)☐ Claim(s) _____ is/are allowed.

7)☒ Claim(s) *1-21* is/are rejected.

8)☐ Claim(s) _____ is/are objected to.

9)☐ Claim(s) _____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

**Application Papers**

10)☐ The specification is objected to by the Examiner.

11)☒ The drawing(s) filed on *21 October 2013* is/are: a)☒ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

**Priority under 35 U.S.C. § 119**

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

**Certified copies:**

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

**Attachment(s)**

1) ☒ Notice of References Cited (PTO-892)

2) ☒ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date *12/6/2013, 10/27/2014*.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date. _____ .

4) ☐ Other: _____.

## DETAILED ACTION

### *Notice of Pre-AIA or AIA Status*

1. The present application is being examined under the pre-AIA first to invent provisions.

### *Claim Rejections - 35 USC § 112*

2. The following is a quotation of 35 U.S.C. 112(b):
(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:
The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

3. **Claims 1-21** are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-AIA the applicant regards as the invention.

4. Claim 1 recites the limitation "when the upstream end of the exhaust treatment device is positioned adjacent to the first portion" in lines 10-12. There is insufficient antecedent basis for this limitation in the claim. Additionally, it is unclear if the first clamp is required to engage both the first portion and the exhaust treatment device. Due to the inclusion of the term “when,” there is a case that the upstream end of the exhaust treatment device is not positioned adjacent to the first portion and therefore the first clamp is not required to engage both the first portion and the exhaust treatment

device. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

5. Claim 1 recites the limitation "when the downstream end of the exhaust treatment device is positioned adjacent to the second portion" in lines 16-17. There is insufficient antecedent basis for this limitation in the claim. Additionally, it is unclear if the second clamp is required to engage both the second portion and the exhaust treatment device. Due to the inclusion of the term “when,” there is a case that the downstream end of the exhaust treatment device is not positioned adjacent to the second portion and therefore the second clamp is not required to engage both the second portion and the exhaust treatment device. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

6. Claim 1 recites the limitation "when the upstream end of the exhaust treatment device is positioned adjacent to the second portion" in lines 20-21. There is insufficient antecedent basis for this limitation in the claim. Additionally, it is unclear if the second clamp is required to preclude coupling the second portion to the exhaust treatment device. Due to the inclusion of the term “when,” there is a case that the upstream end of the exhaust treatment device is not positioned adjacent to the second portion and therefore the second clamp is not required to preclude coupling the second portion to the exhaust treatment device. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

7. Claim 4 recites the limitation "when the downstream end of the exhaust treatment device is positioned adjacent to the first portion and the first clamp engages the first

portion" in lines 2-4. There is insufficient antecedent basis for this limitation in the claim. Additionally, it is unclear if the second cylindrical surface of the housing is required to be spaced apart from the first clamp. Due to the inclusion of the term “when,” there is a case that the downstream end of the exhaust treatment device is not positioned adjacent to the first portion and the first clamp not engaging the first portion and therefore the second cylindrical surface is not required to be spaced apart from the first clamp. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

8. Claim 12 recites the limitation "when the second exhaust treatment device is positioned with its upstream end at an upstream position" in lines 12-14. There is insufficient antecedent basis for this limitation in the claim. Additionally, it is unclear if the first inner surface of the clamp is required to engage the downstream end of the first exhaust treatment device housing and the second inner surface of the clamp is required to engage the upstream end of the second exhaust treatment device housing. Due to the inclusion of the term “when,” there is a case that the second exhaust treatment device is not positioned with its upstream end at an upstream position and therefore the first inner surface of the clamp is not required to engage the downstream end of the first exhaust treatment device housing and the second inner surface of the clamp is not required to engage the upstream end of the second exhaust treatment device housing. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

9. Claim 12 recites the limitation "when an upstream end of the second exhaust treatment device is at a downstream position and the first inner surface of the clamp engages the first exhaust treatment device" in lines 17-19. There is insufficient antecedent basis for this limitation in the claim. Additionally, it is unclear if the second inner surface of the clamp is required to be spaced apart from the second exhaust treatment device housing or if the second inner surface of the clamp is required to restrict incorrectly orienting the second exhaust treatment device. Due to the inclusion of the term “when,” there is a case that the upstream end of the second exhaust treatment device is not at a downstream position and the first inner surface of the clamp does not engage the first exhaust treatment device and therefore the second inner surface of the clamp is not required to be spaced apart from the second exhaust treatment device housing or the second inner surface of the clamp is not required to restrict incorrectly orienting the second exhaust treatment device. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

10. Regarding claim 12, line 17, it is unclear if “an upstream end of the second exhaust treatment device” is the same as the second exhaust treatment device "open upstream end" required by line 7 of the claim.

11. Claim 17 recites the limitation "when the third exhaust treatment device is positioned with its upstream end at an upstream position" in lines 12-13. There is insufficient antecedent basis for this limitation in the claim. Additionally, it is unclear if the first inner surface of the first clamp is required to engage the first exhaust treatment

device and the second inner surface of the first clamp is required to engage the third exhaust treatment device. Due to the inclusion of the term “when,” there is a case that the third exhaust treatment device is not positioned with its upstream end at an upstream position and therefore the first inner surface of the first clamp is not required to engage first exhaust treatment device and the second inner surface of the first clamp is not required to engage the third exhaust treatment device. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

12. Claim 17 recites the limitation "when the third exhaust treatment device is positioned with its upstream end at an upstream position" in lines 16-17. There is insufficient antecedent basis for this limitation in the claim. Additionally, it is unclear if the first inner surface of the second clamp is required to engage the third exhaust treatment device and the second inner surface of the second clamp is required to engage the second exhaust treatment device. Due to the inclusion of the term “when,” there is a case that the third exhaust treatment device is not positioned with its upstream end at an upstream position and therefore the first inner surface of the second clamp is not required to engage third exhaust treatment device and the second inner surface of the second clamp is not required to engage the second exhaust treatment device. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

13. Claim 12 recites the limitation "when the upstream end of the third exhaust treatment device is at a downstream position" in lines 20-21. There is insufficient

antecedent basis for this limitation in the claim. Additionally, it is unclear if one of the inner surfaces of the first clamp is required to be spaced apart from the housing and one of the inner surfaces of the second clamp is required to restrict incorrectly orienting the third exhaust treatment device. Due to the inclusion of the term "when," there is a case that the upstream end of the third exhaust treatment device is not at a downstream position and therefore one of the inner surfaces of the first clamp is not required to be spaced apart from the housing and one of the inner surfaces of the second clamp is not required to restrict incorrectly orienting the third exhaust treatment device. Claim scope is not limited by claim language that suggests or makes optional but does not require steps to be performed.

## *Claim Rejections - 35 USC § 103*

14. In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

15. The following is a quotation of pre-AIA 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

> (a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negatived by the manner in which the invention was made.

16. This application currently names joint inventors. In considering patentability of the claims under pre-AIA 35 U.S.C. 103(a), the examiner presumes that the subject matter of the various claims was commonly owned at the time any inventions covered therein were made absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and invention dates of each claim that was not commonly owned at the time a later invention was made in order for the examiner to consider the applicability of pre-AIA 35 U.S.C. 103(c) and potential pre-AIA 35 U.S.C. 102(e), (f) or (g) prior art under pre-AIA 35 U.S.C. 103(a).

17. **Claims 12-16** are rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over Ignaczak et al. (US 2008/0185841 A1; hereinafter Ignaczak(2008)) in view of Ignaczak et al. (US 2011/0018263 A1; hereinafter Ignaczak(2011)).

18. Regarding claims 12 and 15, Ignaczak(2008) discloses **an exhaust system comprising: a first exhaust device** [A] (see annotated Figure 3 below for all reference letters) **including a housing** [12, 16] **having an upstream end** [12] **and a downstream end** [16]**, the downstream end** [16] **including a first outer diameter** [22]**; a second exhaust device** [B] **positioned immediately adjacent to the first exhaust device** [A]**, the second exhaust device** [B] **including a housing** [14, 18] **having a second outer diameter** [C] **different than the first outer diameter** [22] **at an open upstream end** [18]**, the second exhaust device housing** [14, 18] **having a third outer diameter** [D] **different than the second outer diameter** [C] **at an open second end** [14]**; and a clamp** [10] **including a first inner surface** [E] **engaging the downstream end** [16] **of the first exhaust device housing** [12, 16] **and a second**

**inner surface** [F] **engaging the upstream end** [18] **of the second exhaust device housing** [14, 18] **when the second exhaust device** [B] **is positioned with its upstream end** [18] **at an upstream position, wherein the second inner surface** [F] **of the clamp** [10] **is spaced apart from the second exhaust device housing** [14, 18] **or the second inner surface** [F] **of the clamp** [10] **restricts incorrectly orienting the second exhaust device** [B] **when an upstream end** [18] **of the second exhaust device** [B] **is at a downstream position and the first inner surface** [E] **of the clamp** [10] **engages the first exhaust device** [A] (paragraphs 0017-0024, Figures 1-2, and annotated Figure 3 below). Ignaczak(2008) does not disclose the exhaust system being an exhaust treatment system comprising first and second exhaust treatment devices. Ignaczak(2011), however, teaches a similar **exhaust treatment system comprising: a first exhaust treatment device** [12], and **a second exhaust treatment device** [14], **wherein the second exhaust treatment device** [14] **includes a diesel particulate filter** (paragraphs 0012-0014 and Figure 1). It would have been obvious to a person having ordinary skill in the art at the time the invention was made to configure the exhaust system of Ignaczak(2008) to be an exhaust treatment system with first and second exhaust treatment devices, wherein the second exhaust treatment device includes a diesel particulate filter because Ignaczak(2011) teaches that exhaust treatment devices including diesel particulate filters are commonly accommodated in exhaust pipes which are joined with pipe clamps (paragraphs 0003 and 0012) which provides the benefit of treating and filtering exhaust to comply with emissions standards.

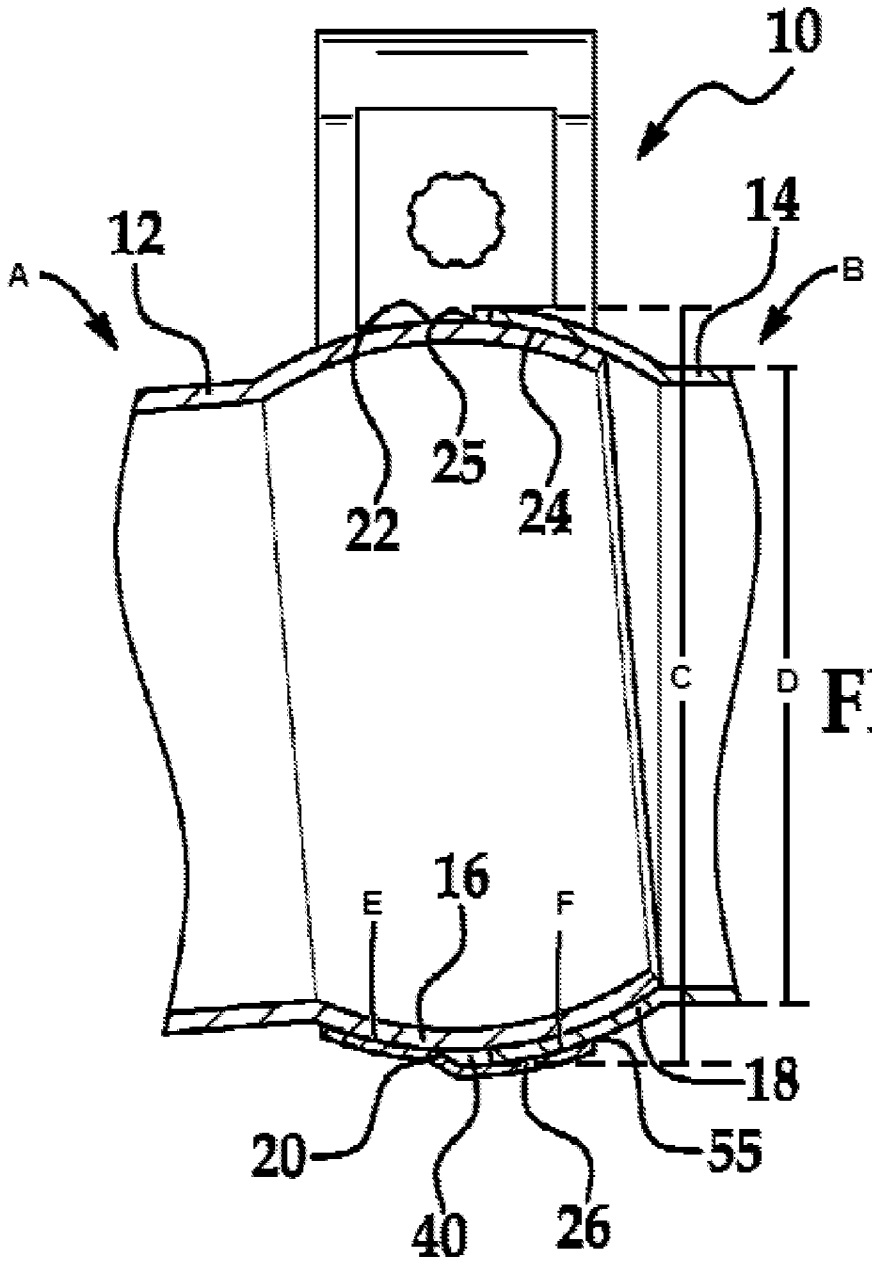



FIG. 3

19.

20. Regarding claim 13, the modified Ignaczak(2008) does not disclose the first outer diameter being greater than the second outer diameter. However, it would have been obvious to a person having ordinary skill in the art at the time the invention was made to reverse the locations of the first and second pipes [12, 14], thus making the first outer diameter (now [C]) greater than the second outer diameter (now [22]), since it has been

held that a mere reversal of the essential working parts of a device involves only routine skill in the art. *In re Einstein*, 8 USPQ 167. Furthermore, it would have been an obvious matter of design choice to orient the first and second pipes [12, 14] in whatever configuration, relative to exhaust gas flow, is desired or expedient, since applicant has not disclosed that configuring the first outer diameter to be greater than the second outer diameter solves any stated problem or is for any particular purpose and it appears that the invention would perform equally as well with the first outer diameter being less than the second outer diameter (see claim 14, for example).

21. Regarding claim 14, the modified Ignaczak(2008) discloses **the system of claim 12, wherein the first outer diameter** [22] **is less than the second outer diameter** [C] (paragraphs 0018, 0024, and annotated Figure 3 above)**.**

22. Regarding claim 16, the modified Ignaczak(2008) discloses **the system of claim 12, wherein the clamp** [10] **includes a band clamp** (see [26]) (paragraphs 0017, 0019-0020, 0023, and Figures 1-3)**.**

## ***Allowable Subject Matter***

23. **Claims 1-11 and 17-21** are not rejected under art; however, the claims are rejected 35 U.S.C. 112 (pre-AIA), second paragraph and are therefore not allowable.

## ***Conclusion***

24. The prior art made of record and not relied upon is considered pertinent to applicant's disclosure. See Cassel (US 4,261,600), Sedlacek et al. (US 2005/0179260

A1), Wagner (US 6,116,659), Christianson et al. (US 2011/0277454 A1), and Waterman (US 5,547,232) which further disclose a state of the art.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to AUDREY K. BRADLEY whose telephone number is (571)270-5286. The examiner can normally be reached on Monday - Thursday, 8:00 am - 6:00 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Kenneth Bomberg can be reached on (571) 272-4922. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see http://pair-direct.uspto.gov. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/AUDREY K BRADLEY/
Primary Examiner, Art Unit 3748